

D.E.A. Owned Mechanical Equipment Preventive Maintenance & Repair

STATEMENT OF WORK

The purpose of this contract is to perform the required preventive maintenance and any necessary repairs to the equipment identified in the attachment. The is a fixed price agreement for the performance of preventive maintenance of the identified equipment in accordance with requirements of the GSA-PBS 5850 or the manufacturer's recommendations, WHICHEVER IS MOST STRINGENT, in addition to repairs above and beyond scheduled preventative maintenance as deemed necessary by the Government on an as needed basis. All maintenance & repairs performed under this contract shall be performed by FACTORY CERTIFIED or otherwise qualified personnel as deemed acceptable by the Government. The Contractor shall submit proof of such FACTORY CERTIFICATION or qualification for each piece of equipment before allowing their personnel to work on such equipment. The Contractor shall be responsible for determining (within restrictions and requirements as noted in the SOW) the number of personnel required, the scheduling of PM activities to meet the frequency requirements and the supervision and direction of their employees while on-site as well as quality control and required documentation. However, The Contractor shall respond to Service Calls in a timely manner as defined by this Statement of Work. In addition, the contract also contains provisions for the repair of equipment beyond the requirements of preventive maintenance to include timeliness in response to service calls, emergency repairs and administrative procedures for the submission of proposals, scheduling and invoicing.

The Contractor shall take all measures necessary to keep noise, dust, disruption and physical impedance to an absolute minimum. The use or production of hazardous, noxious, poisonous or flammable materials is prohibited unless absolutely required during the performance of the work and only after approval of a plan submitted by the contractor to the COR demonstrating how the building and personnel within will be protected. In addition, the Contractor shall perform their work and upon completion of each activity shall return each piece of equipment, work area and adjacent work areas back into normal service free of defects, surface marring, scuffs, dust, residue, debris or other objectionable material. All waste generated during the performance of this Contract shall be removed from the facility by the Contractor and disposed of in a manner consistent with Federal, State and local laws, regulations or ordinances. Recyclable waste shall be recovered and collected by the Contractor and delivered by the Contractor to an appropriate facility for the purposes of recycling to the greatest extent possible.

The Contractor is advised to pay particular attention to the unique and rigorous personnel security requirements for access to DEA Headquarters as well as limitations on working hours, disruption of DEA programs and required response times. Fulfillment of these unique requirements will be essential to the performance of a successful contract.

The Contractor should also note the U.S. Drug Enforcement Administration is a Federal law enforcement agency with functions and responsibilities critical to national security to include designated SCIF, data centers and other secured areas served by mission critical equipment. The Contractor shall staff the Contract only with personnel who understand and appreciate the sensitive and vital nature of these Government programs and the equipment that supports them.

The Contractor shall staff this contract with sufficient Human resources to complete all preventive maintenance and repairs in a timely manner as described in the statement of work. However, at a minimum, the Contractor shall have an on-site Maintenance and Repair Supervisor AND an on-site Maintenance and Repair Helper for a minimum eight hours (each individual) during the core business hours of 6am to 6pm, Monday through Thursday. The on-site Maintenance and Repair Manager shall possess the Contractor's authority and qualifications to perform work, purchase supplies, engage subcontractors and speak officially for the Contractor during interactions with authorized Government personnel.

PREVENTIVE MAINTENANCE

CONTRACTOR FURNISHED EQUIPMENT

The Contractor shall furnish:

All supplies, materials, repair or replacement parts, tools, equipment, services, supervision, expertise and labor necessary to efficiently and satisfactorily perform the work specified in this contract. The materials, repair or replacement parts, consumable supplies (filters, lubricants, fluids etc.) used in/or on any piece of equipment or system must meet the manufacturer's minimum warranty standards regardless if the equipment is still under warranty or not. All personnel utilized for preventive maintenance or repair shall be, at a minimum, FACTORY CERTIFIED or otherwise qualified as deemed acceptable by the Government to perform such work on each piece of equipment itemized in the attached Equipment Inventory. Proof of such original equipment manufacturer's certification or qualifications in the form of training certificates or other manufacture's accreditation shall be submitted to the COR prior to the performance of work by the named individual for such equipment.

APPLICABLE STANDARDS AND REGULATIONS

The Contractor shall comply with all local, County, State, Federal, and D.E.A. Agency standards, laws, codes and regulations to the full extent applicable for their use on this project at the DEA Headquarters Facility, County of Arlington, Commonwealth of Virginia to include all building, environmental, security, safety, employment, engineering, mechanical and other aspects. The Contractor shall be required to obtain

and maintain a Class A Virginia Contractor's license (or Government acceptable equivalent) for the duration of the contract.

The Contractor shall conform to, and remain compliant with the established standards for the maintenance and repair of building equipment which include but are not necessarily limited to those provided by the equipment manufacturer, the industry standards organizations as accepted below and Government regulatory entities. The Contractor shall stay in conformity with evolving standards, specifications and procedures. The Contractor shall obtain all applicable industry publications, manufacturer's operation and maintenance references and other data or information required to complete the work required by this Contract.

The Contractor shall perform all work in conformance with Installation, Design Specifications and Drawings, as well as Manufacturer's instruction manuals and test recommendations for the particular equipment. Appropriate standards, Federal, state and local fire, electrical and mechanical codes applicable to this requirement, as stated herein, include (but not limited to) the following:

- Environmental Protection Agency (EPA)
- International Standards Organization: ISO-14001
- D.E.A. adopted Spill Prevention, Containment & Counter-Measures Plan (SPCC)
- Department of Labor (DOL)
- General Services Administration (GSA)
- Occupational Safety and Health Administration (OSHA)
- American Association of Engineering Societies (AAES)
- American National Standards Institute (ANSI)
- American Society of Heating, Refrigeration and Air Conditioning Engineers (ASHRAE)
- American Society of Mechanical Engineers (ASME)
- American Standards Technical Manual (ASTM)
- American Waterworks Association (AWWA)
- Institute of Electrical and Electronics Engineers (IEEE)
- Insulated Power Cable Engineer Association (IPCEA)
- National Electric Code (NEC)
- National Electrical Manufacturing Association (NEMA)
- National Electrical Testing Association (NETA)
- National Fire Protection Association (NFPA)
- Federal Property Management Regulations (FPMR)
- Sheet Metal and Air Conditioning Contractors National Association (SMACCNA)

ACCEPTABLE LEVEL OF OPERATION

An "acceptable level" of operation for the purpose of this contract is defined as the level of maintenance and/or repair necessary to preserve the equipment in unimpaired operating condition and preserve the original manufacturer's warranty and above the

point where deterioration will begin thereby diminishing the normal life expectancy of the equipment.

All work shall be performed in accordance with the applicable manufacturer's recommendations, standards and regulations and the Maintenance Management guidelines set forth in the General Services Administration publication PBS P 5850.1B whatever is MOST stringent.

FACILITY RESTRICTIONS

The Contractor shall maintain and service all specified equipment, systems and building components in accordance with Federal, state, local and DEA restrictions, and shall be responsible for obtaining any rights-of-way, permits, waivers, approvals or licenses and/or certificates required to perform the required work. This is a leased facility. The Contractor shall be required to agree to the conditions for working on or within the facility as required by the building Landlord to include minimum insurance requirements, elevator use restrictions and notification policies regarding affected building systems.

SAFETY

The Contractor shall perform all work in a prudent, conscientious, safe and professional manner. At a minimum, Contractor's personnel, equipment, and practices shall comply with all safety requirements set forth in applicable Federal, state, and local laws, standards and regulations and shall ensure that employees and subcontractors perform the work in a safe manner with particular attention to the safety and protection of Contractor personnel, building occupants and personal and Government property, information and resources.

SECURITY

Prior to the commencement of work, the Contractor shall ensure that all personnel involved in the operations and maintenance services, and related work thereof, meet the security requirements identified in this contract. Due to the nature of the DEA mission, all contractor employees working on-site will be required to undergo an extensive background investigation in order to determine their suitability for access to the DEA-Headquarters facility. Contractor personnel who have not favorably completed this vetting process or who are denied access for whatever reason will not be permitted to work on-site. Contractor personnel who are scheduled to work less than 24 hours per week will not be eligible for a clearance allowing them unescorted access. In such cases, the Contractor shall be responsible for escorting all such employees, suppliers or subcontractors.

ACCESS TO SECURE AREAS

Due to the sensitive and secure nature of DEA programs and the DEA mission, Contractor personnel shall expect to encounter numerous areas throughout the facility to which access is severely restricted or limited. The Contractor shall make every effort to

coordinate access needs with those in direct control of these areas. The Contractor shall schedule and reschedule if necessary in order to accommodate specific programs needs and requirements. However, if the Contractor is ultimately unable to gain access to areas requiring service the Contractor shall submit written notice to the COR noting the efforts made to gain access, dates that access was attempted, names of program personnel contacted and who denied access to Contractor personnel. This shall not de-obligate the Contractor from performance once the access issue is resolved.

HOURS OF OPERATION

The DEA Headquarters, Lincoln Place Facility is open 24 hours a day, 7 days a week, 365 days a year. However, all scheduled Preventive Maintenance shall be performed during normal business hours unless otherwise specified or authorized by the COR. If the COR determines such activity will adversely impact DEA programs during normal business hours the Contractor shall schedule proposed PM activity to “Other Than Normal Business Hours”. “Urgent” or “Emergency” repairs (as defined elsewhere in this Contract) may also require response during “Other Than Normal Hours of Operation”.

A. Normal Core Hours of Operation. Normal core hours of operation for the facility are 6:00 a.m. to 6:00 p.m., Monday thru Friday, except recognized Federal Holidays. Certain agency elements operate 24 hours a day, 7 days a week. The Contractor shall coordinate all maintenance services, and related work that require weekend and overtime work with the COR. During the “Normal Core Hours of Operation” the Contractor shall maintain a business telephone number by which the COR may contact the Contractor with questions about scheduling, inspection of PMs, status of work being performed, etc. All calls received from the COR shall be kept by the Contractor in log format with a minimum note of; 1) Name of Caller. 2) Date & Time of Call 3) Location & Nature of Caller’s Concern. 4) Action Taken & Resolution. A copy of the log shall be submitted to the COR on a monthly basis along with any invoice.

B. Other Than Normal Hours of Operation. This will be defined as ALL other time not otherwise defined as “Normal Core Hours of Operation”. Due to the critical mission of some DEA programs the contractor may be required to schedule or reschedule preventive maintenance or repair work to be performed during other than normal hours of operation. This will be determined by the COR. In such case the contractor shall submit an itemized proposal for the differential costs between normal and other than normal hours of performance.

Please note that work in or requiring access to the Cafeteria and Dining area shall be scheduled and performed outside of the normal Cafeteria hours of operation.

OBSERVANCE OF LEGAL HOLIDAYS

A. The Contractor shall recognize the observed date for each Federal Holiday (as defined by OPM) and treat these days as “Other Than Normal Hours of Operation”

1. New Years Day
2. Martin Luther King Day
3. Presidents Day
4. Memorial Day
5. Juneteenth
6. Independence Day
7. Labor Day
8. Columbus Day
9. Veterans Day
10. Thanksgiving Day
11. Christmas Day

Any other declared Federal Holidays as recognized by OPM.

B. Should a holiday fall on a weekend, the day designated by the Government shall be recognized as the holiday.

C. There are certain types of irregularly occurring circumstances that may prompt the Government to close the offices where Contractor personnel are working, either on a national or local basis. Examples of such situations are: inclement weather emergencies (usually snow); Presidential or Agency declared administrative leave (such as Christmas Eve or Inaugural Day); Any other declared National or local emergency (terrorist attack, riots, acts of war) when such situations occur, the Contractor may bill the Government for only the actual hours worked up to the time of the official closing.

The Contractor shall not be reimbursed for employee attendance at DEA functions held during normal working hours (i.e., DEA fund raisers, picnics, etc.). The Contractor shall not bill the Government for employee attendance of Contractor functions (parties, picnics, etc.)

EQUIPMENT AND MATERIALS DISMANTLING, HANDLING AND/OR HAULING

A. The Contractor shall coordinate the route of moving equipment and materials within the facility before dismantling, handling and/or hauling same with the COR.

B. Disposal of waste materials through windows or doors shall only be allowed with the use of enclosed chutes or receptacles, subject to prior notification and written approval of the COTR. No materials shall be thrown from windows or doors of the facility.

C. The Contractor shall notify the COR in writing 72 hours in advance of performing work that requires opening or dismantling equipment. The Contractor shall notify the COR to reach a mutually acceptable time and date corrective action will be completed for

work required in response to an emergency or urgent service call within the response time specified herein. Such equipment may include, but is not limited to: generators, pumps, refrigeration units, condensers, evaporators, hoist motors, motor generator sets, elevators, and/or such equipment as deemed critical to the DEA mission by the COR. The Government reserves the right to inspect the equipment before, during and after any work performed.

FIRE ALARM/SPRINKLER SYSTEMS

The Contractor shall coordinate all work through the COR to schedule fire alarm or sprinkler system outages. If the security alarm/fire alarm or sprinkler systems are temporarily removed or disconnected, they must be reconnected and placed back in service at the end of each work day unless otherwise authorized by the COR.

TEMPORARY OUTAGES

The Contractor shall coordinate all temporary outages of any equipment, utility services, security and/or fire alarm systems required for the performance of work, with the COR not less than 72 hours in advance of such outages.

UNIFORMS

All personnel working in the facility on a day-to-day basis shall wear distinctive clothing such as coveralls, uniform shirt and trousers, or uniform blouse and skirt or slacks.

A. The uniform shall have the Contractor's name and individual employee's name permanently affixed thereon that can be readily identifiable from a distance of six (6) feet away.

B. The Project Manager and subordinate supervisors shall be easily recognizable, either by distinctive clothing or by an easily read monogram.

C. All sub-contractor employees shall have the firm's and employees' name affixed on their clothing in a permanent manner, such as a monogram.

BUILDING IDENTIFICATION/BUILDING PASS

Prior to the employee starting for duty, the Contractor shall ensure that every new employee has an official Building Identification/Facility Pass. Identification/Facility Passes will be provided by the DEA Office of Security Programs upon favorable completion of Background Investigation.

A. Upon resignation, reassignment, or other departure and when a contractor employee is no longer directly employed under this contract, the Contractor shall ensure that all contract employee passes are returned to the COR within 24 hours.

B. The Contractor shall ensure that all employees, including subcontractor's employees, wear their Identification/Facility Passes at all times while on duty or on site at Lincoln Place.

PARKING

The Government will provide for the Contractor's use, two (2) total on-site parking spaces pending the approval of DEA based on information provided by the Contractor to include; vehicle make, model, description and license plate as well as the Driver's pertinent information relative to approved building access. No other parking accommodations will be offered or made available by the Government for Contractor's vehicles, private vehicles or subcontractor's vehicles. It shall be the Contractor's responsibility to locate and secure any needed additional parking off-site at the Contractor's expense.

USE OF SPACE

The Contractor will be provided with approximately 100 square feet of on-site, sheltered and secure space for the storage of consumable supplies (filters, lubricants, refrigerants, etc.). No other on-site space will be offered or made available by the Government.

SPECIFIC REQUIREMENTS PLANS

The Contractor shall develop, implement and maintain a Plan for each of the areas as specified herein, thereby establishing its policies and procedures at the DEA Headquarters, Lincoln Place facility in support of the requirements specified herein. In no case shall receipt or approval of a plan by the Government be construed in any way to neither de-obligate the Contractor from the requirements of the solicitation nor diminish the quality or frequency of work as specified in the solicitation.

A. Each Plan is a document, prepared by the Contractor for each program that details the strategy for completing all contract requirements on time. This Plan serves as the blueprint for successful program implementation. These Plans are considered critical documents and will be used by the COR to monitor each program. The Plan shall specify what will be done, by whom, when, how, and at what level, from the start of the program through the evaluation of the completed work.

B. The Contractor shall submit the following Plans to the Contracting Officer's Technical Representative (COR) for review. The COR will evaluate the plan and submit recommendations to the Contracting Officer, who will in turn promptly notify the Contractor of its approval or disapproval.

QUALITY CONTROL PLAN

The Contractor shall submit a written Quality Control Plan in compliance with current county, state, local, Federal, and DEA policies, procedures, laws, codes, standards and regulations. The Plan shall address all aspects of the General Requirements specified under the Contract. The Plan shall contain management, response, maintenance, and repair of the DEA Headquarters, Lincoln Place facility to include all specified building equipment and systems, and contain, as a minimum:

- A. Problem identification and resolution; measures to improve quality of performance; tracking of costs and results associated with service calls or other operational problems, results of inspections, and preventive actions. Sample formats for reporting documents intended for submission to the Government.
- B. Inspection System to include Inspection Schedule(s).

REPAIR PLAN

The Contractor shall submit a written Repair Plan for all facility Equipment and Systems as specified.

- A. Procedures shall be in compliance with current county, state, local, Federal, and DEA policies, procedures, laws, codes, standards and regulations. The Plan shall address all aspects of the requirement specified
- B. The Plan shall contain management, administration, operation, maintenance, and repair/replacement; contract and sub contract employee training; inspection, reporting, and contract transition. As a minimum, the plan shall contain policy and procedures for performing all technical functions to include engineering services, necessary for the effective and timely accomplishment of contract requirements specified herein.
- C. The Contractor shall also submit a schedule of their overhead and profit rates that may be associated with subsequent proposals for repairs not otherwise covered by preventive maintenance. These proposed labor rates and other proposed charges shall remain effective for the entire base year of the Contract and all Options.

PREVENTATIVE MAINTENANCE (PM) PLAN

The Contractor shall submit a written Preventive Maintenance Plan in compliance with the current General Services Administration PBS P 5850.1B or the Manufacturer's recommendations whichever is more stringent, as determined by the COR, for all identified equipment and systems. The Plan shall address all aspects of the Preventive Maintenance Program requirement. The plan shall contain, but not limited to:

- A. The identification of the items, frequency, and description of the work to be performed.

- B. Procedures for adding, deleting, and/or revising PM schedules.
- C. Procedures for documenting discrepancies found and corrective action taken to repair/replace an item or items.
- D. Use of the DEA coding system for equipment to identify and track all Preventive Maintenance.

HARZARDOUS MATERIALS PLAN

The Contractor shall submit a written Hazardous Material Plan in compliance with current county, state, local, Federal, OSHA, EPA and DEA policies, procedures, laws, codes, standards and regulations. The Contractor shall incorporate the approved D.E.A.-SPCC plan into their Hazardous Material Plan. The Plan shall address all aspects of the Hazardous Material Program requirement as specified. In order to safeguard both life and property, the Contractor shall submit a Plan to contain, as a minimum, the following:

- A. A list of all chemicals and solvents used for maintenance and cleaning agents with their expiration dates and Material Safety Data Sheets (MSDS), subject to review and approval of the COR prior to use. New supplies or changes in previously approved materials shall require product literature and MSDS's and may require samples for approval by the COR before use.
- B. Procedures to ensure that all containers holding chemicals and solvents used for maintenance fluids, cleaning agents and pesticides are approved containers and properly labeled with the name, strength and quantity of the chemical agent therein, according to the most current DEA, EPA, OSHA, county, state, and other Federal procedures, laws, codes, standards and regulations.
- C. Procedures to ensure that combustible materials that are stored on the premises, are labeled and stored in accordance with the most current DEA, EPA, OSHA, NFPA, State, Local, and other Federal regulations with the fire hazard potential of the materials conspicuously displayed on approved lockable metal cabinets.

PREVENTIVE MAINTENANCE PERFORMANCE

GENERAL

The Contractor shall perform maintenance in accordance with standards and regulations set forth in the General Service Administration (GSA) PBS P 5850.1B or the Manufacturer's recommendations whichever is more stringent, as determined by the COR, for all identified equipment and systems with FACTORY qualified and FACTORY certified mechanics or as otherwise deemed acceptable by the Government. The Contractor shall perform preventive maintenance on all equipment critical to the mission of the agency and all equipment whose failure could cause a life safety or fire safety

hazard. The Contractor shall identify all deficiencies noted during maintenance and recommend corrective action through the appropriate maintenance, repair and/or replacement within 24 hours of such detection or identification. All deficiencies shall be reported to the COR in writing within 24 hours of detection. All equipment or systems not covered under GSA PBS P 5850 or equivalent standards shall be maintained in accordance with the manufacturer's recommendations and guidelines. The Contractor shall not deviate from the standards contained in the latest edition of GSA's PBS P 5850, without the prior written approval of the COR. The Contractor shall submit a written justification for any requested deviations for review and approval by the COR prior to implementation. The Contractor assumes full responsibility for the performance of all preventive maintenance activity to include cleaning of areas affected by the PM activity and damage to facilities or equipment as a result of the PM activity.

PREVENTATIVE MAINTENANCE PROGRAM

The Contractor shall develop and implement a Preventive Maintenance (PM) program for all the equipment and systems listed on the attached Equipment Inventory list. This program shall include, but is not limited to: periodic inspections, testing, cleaning, lubrication, adjustment, filter cleaning and replacement, and the necessary parts and repairs to keep the equipment and systems in optimum operating condition. Special emphasis shall be placed on an air filter replacement program to ensure optimum efficiency of equipment. All disposable filter media shall be clearly and legibly dated with the date of installation and the name of the technician who installed the media. Disposable filter media shall be replaced as recommended by the manufacturer or as scheduled in the PBS 5850. At a minimum, all disposable filter media shall be changed every three months. NOTE: The alpha-numeric designations applied to the equipment itemized in the Equipment Inventory attachment are for the convenience of reference only and do not define the scope or extent of PM activities to be performed. All equipment and related systems listed in the attached Equipment Inventory shall receive all PM requirements as set for the in PBS-P-5850 or as recommended by the manufacturer (whichever is more stringent) at the frequencies indicated in this solicitation.

Please note that the Contractor is responsible for all attached supply piping and drains of the Contract Equipment Inventory back to the base building supply/drain/return running through the central core of the building.

PREVENTATIVE MAINTENANCE SCHEDULE

The Contractor shall review the Equipment and System Inventory to identify those items on which PM shall be performed and establish a PM Schedule. The Schedule shall list (at a minimum) the date, time, location and type of PM to be performed. Scheduled PM changes shall be reported to the COR. All such changes shall be confirmed in writing and submitted to the COR with a minimum of 24 hours notice.

- A. The Contractor shall submit an Annual PM Schedule to the COR for review and approval.
- B. The Contractor shall submit the Monthly PM Schedule to the COR in sufficient detail to allow the Government to inspect the PM's as they are performed.
- C. The Contractor shall submit to the COR a Weekly PM Schedule with sufficient detail (including; date, time, location and equipment type) to allow the COR or his designee the opportunity to observe the PM performance in an unannounced manner.

DESCRIPTION

The PM schedule shall contain information on each piece of equipment or system, and provide as a minimum the following information: Scheduled date for PM Services, a description of the equipment or system and equipment number, physical location, current warranty information, and work to be performed.

FREQUENCY

The Contractor shall provide the frequency for equipment and systems identified for preventive maintenance based on the attached Equipment Inventory using the Government Fiscal Year cycle (October 1 to September 30). PM scheduled to be performed less frequently than annually, every two, three or five years, etc., shall be scheduled for completion during the first six months of the contract or as determined by the COR in accordance with the equipment maintenance schedule and the last effective date such PM was performed. The required frequencies for PM of each piece of equipment are defined in the attached Equipment Inventory and supersede frequencies noted in the PBS.5850.

DOCUMENTATION

The Contractor shall maintain Preventive Maintenance (PM) Records to document the PM activities performed on each piece of equipment and its current status of operation.

- A. The PM records shall contain information on periodic maintenance performed, scheduled PM dates and completed PM dates.

The Contractor shall update PM records on a monthly basis and submit a copy to the COR not later than the fifth (5th) workday of each month to reflect the previous month's activity and the current months schedule and maintain a historical database for the entire term of the Contract including all exercised option periods.

- B. All PM records shall be made available to the COR upon request. Upon contract completion, the Contractor shall turn over all PM records to the COR.

C. The Contractor shall provide information on equipment and systems identified during PM that require repair or replacement. The information shall document the estimated cost, including labor, equipment, and supplies required to affect correction, repair or replacement.

D. The Contractor shall supply and maintain at each piece of inventoried equipment a "Service Log" in a line item format to indicate each time the equipment is visited by the Contractor's personnel or sub-contractors. The "Service Log" will show (at a minimum) each instance the equipment was visited, nature of the visit (PM, service call, repair, inspection, etc.), name of the individual technician and a report of observations and all measurements or readings taken. The "Service Log" shall remain at the individual piece of equipment and shall not be removed for any reason except as directed by the COR. The "Service Log" shall be available for inspection by the COR or his designee at all times.

PREVENTATIVE MAINTAINANCE PROGRESS REPORTS

The Contractor shall be responsible for maintaining PM records for each piece of equipment or system identified as part of this Contract. The records shall reflect periodic maintenance performed, scheduled PM dates and completed PM dates. The Contractor shall submit a monthly Preventive Maintenance Status Report to the COR. The status report shall contain information on each piece of equipment and system to include: the progress of PM work scheduled, periodic maintenance performed, work rescheduled, and/or deficiencies noted.

FAILURE TO PERFORM REQUIRED PREVENTATIVE MAINTENANCE

If the Contractor fails to perform required preventive maintenance tasks or fails to perform them properly as determined by the COR, the Contractor's monthly invoice shall be reduced for such PM activities by a dollar amount based on the manpower estimates contained in GSA-PBS.5850. In addition, the Contractor shall become wholly responsible (with no dollar limit) for ALL REPAIRS associated with each piece of equipment for which proper preventive maintenance was not performed for a period of not less than one year after the original scheduled date of the missed or failed preventive maintenance activity.

REPAIRS

EQUIPMENT/SYSTEMS REPAIR

Through routine preventive maintenance or in response to an authorized request for service, the Contractor shall identify all deficiencies and indications of necessary repairs and recommend corrective action through appropriate maintenance, repair and/or replacement of affected equipment and systems.

The Contractor shall not bill time or materials for repairs which would have otherwise been covered by the preventive maintenance service or other billable service calls.

The Contractor shall warrant all repairs inclusive of parts, labor, shipping and travel time for a period of not less than 90 calendar days.

The Contractor shall not proceed with the work without the written approval of the COR. The Government reserves the right to direct the Contractor to proceed with the repair, or not to proceed with the repair. The Government may accomplish the repair by using other sources more advantageous to the Government. The Contractor DOES NOT have exclusive right to perform repairs beyond the scope of preventive maintenance. The contractor shall submit an itemized schedule of labor rates (hourly- normal and overtime) for each of the trades or labor classifications that may be needed as indicated by the attached equipment inventory at the time of proposal for the Contract. The Contractor shall also submit a schedule of their overhead and profit rates inclusive of all other fees or charges (such as travel time) that may be associated with subsequent proposals for repairs not otherwise covered by preventive maintenance. These labor rates and other proposed charges shall remain effective for the entire length of the Contract.

All parts replaced under the provisions of this contract shall be new and identical to either the original equipment or the equipment manufacturer's recommended replacement parts.

All personnel utilized for service or repair shall be, at a minimum, FACTORY CERTIFIED or otherwise acceptable to the Government to perform such work on each piece of equipment itemized in the attached Equipment Inventory. Proof of such original equipment manufacturer's certification in the form of training certificates or other manufacture's accreditation shall be submitted to the COR prior to the performance of work by the named individual for such equipment. The Contractor assumes full responsibility for the proper performance of the repair to include cleaning of areas affected by the repair activity and damage to facilities or equipment as a result of the repair activity.

The Government reserves the right to furnish any or all parts and/or materials and equipment required for a particular repair to the Contractor as specified Government Furnished Equipment/Parts. In this case the Contractor shall revise their proposal to reflect the cost of the repair minus the value of the Government furnished parts, materials or equipment.

If the Contractor furnishes the parts and/or materials, the price to be paid shall be based on established catalog or list prices, in effect when material is furnished, less all applicable discounts, but in no event shall such price be in excess of the Contractor's actual cost or the current market price, whichever is lower.

If the Contractor proposes to perform the repair with the use of a subcontractor, the subcontractor's actual charges to the prime contractor shall be submitted to the Government as part of the Contractor's proposal to perform the repairs. The Contractor shall apply no markup to their subcontractor's pricing beyond the Contractor's previously submitted rates for overhead and profit on repairs. All subcontract personnel must be cleared by DEA Security Programs for access to the facility and must be fully escorted while on-site at all times by the prime Contractor.

The Contractor shall certify all completed repairs to the Government as "complete" and the affected equipment as "suitable and safe for its intended use" and make the appropriate changes to the Maintenance Schedules and/or other Plans required to support the operation, maintenance and warranties of the repaired item.

In all cases, other than repairs required due to direct action (or inaction) of the Government and others beyond the Contractor's control, the Contractor shall be responsible for the first \$500 (five hundred Dollars) of the cost of any repair not to include any Contractor added overhead & profit. For authorized repairs beyond \$500 in value the cost of the repair shall be based on the Contractor's submitted labor rates, actual cost of parts and actual cost of any subcontracted effort plus previously submitted (and agreed upon) Contractor's added overhead and profit percentages.

SERVICE CALL CLASSIFICATIONS

The Contractor shall respond to requests for service ONLY from the Government Contracting Officer or the COR for equipment and systems covered by this Contract. However, problems or concerns with equipment or systems contained in the inventory may be reported by anybody at anytime. In such cases, the Contractor shall investigate and make recommendations for adjustment or repair directly to the CO or COR only. In addition, issues with equipment contained in the inventory, that constitute an "Emergency" as defined below shall be addressed by the Contractor immediately until the condition is stabilized and all threats are abated. All Problems or complaints that can be addressed or corrected within the first hour of response during normal business hours (6:00am-6:00pm) are considered an included service of the base Contract and are **not** billable as "repairs" as defined by the Contract.

RESPONSE

The Contractor shall respond to calls for service or repair based on the level of urgency as defined by the COR.

A. Routine Calls - Any reported condition(s) that does not constitute an Emergency or Urgent response as defined below.

Response to Routine Calls:

The Contractor shall respond to Routine Calls and complete the work required within 24 hours and respond during normal business hours (6:00am to 5:00pm, M-F except observed Federal Holidays)

In those instances where a service call cannot be resolved within 24 hours (seven days a week) due to circumstances beyond the Contractor's control, the Contractor shall immediately notify the COR to reach a mutually acceptable time and date corrective action will be completed.

B. Urgent Calls - Circumstances which interrupt or otherwise adversely impact either facility operations or facility occupant operations.

Response to Urgent Calls:

The Contractor shall respond within one (1) hour during normal business hours and within two (2) hours during other than normal business hours. The Contractor shall remain on the on-site and on the job until the problem has been mitigated to the satisfaction of the COR at which time permanent repairs will be scheduled during normal business hours.

C. Emergency Calls - Any condition constituting immediate danger to personnel, property or DEA mission critical operations.

NOTE: Anybody may report an "Emergency Call" at any time. In such cases where the nature of the "Emergency Call" demands immediate attention in order to minimize or mitigate damage or potential damage to human life and property (including facilities and equipment) the Contractor shall take immediate action and mobilize all required resources to stabilize the situation to prevent further damage. The Contractor shall then notify the COR as soon as possible and propose options for a permanent repair as required under the Contract.

Response to Emergency Calls:

The Contractor shall respond immediately, within one (1) hour, to all Emergency calls and remain on-site and on the job until the emergency has been resolved to the

satisfaction of the COR. Response and repairs to a designated “Emergency Call” shall be required 24 hours per day, 365 days per year. The Contractor shall be prepared to mobilize all resources necessary including subcontractors and suppliers in order to meet this requirement.

The Contractor shall submit and maintain an always current 24-hour emergency response contact list with at least three alternate contacts if the primary proves unreachable. The list shall include all telephone numbers (home and business) cell phone numbers, pager numbers and e-mail addresses to allow contact 24 hours per day, 365 days per year as required.

SERVICE CALL LOG

The Contractor shall maintain a Service Call Log in sufficient detail to enable the COR to determine whether service calls are being addressed in accordance with the terms of the contract. At a minimum the Log shall include date, callers name, telephone number, nature and location of service requested, the date and time a person was dispatched, action taken by the Contractor (including readings and recorded temperatures) and the date and time the problem was resolved. In addition, the Contractor shall include an itemized break-out of all labor hour categories utilized (travel time to be itemized separately) itemized parts, materials and equipment utilized for the repair. A copy of the log shall be submitted to the COR within 5 days of the completed repair and a minimum 5 days before the submission of any invoice related to the repair. Each repair shall be designated by a unique reference number.

INVOICING

The Contractor shall submit all invoicing in the format required by Federal Acquisition Regulations to include at a minimum the date of service, date of invoice, a unique invoice number, a detailed description of the work being billed (along with the Service Call Log reference number) and a certification from a responsible party that all repairs are proper and complete and that all charges are true and correct and have not been previously billed. All invoices shall be submitted electronically in pdf format to:

Invoice.Admin@dea.gov

Under no circumstances shall the Contractor submit an invoice or otherwise bill for repairs required as a result of the Contractor’s failure to perform required preventive maintenance or from a failure to perform such preventive maintenance properly.

LOCKSMITH SERVICES, MINOR REPAIRS & OTHER BUILDING SERVICES

From time to time the Contractor may be requested to provide a proposal for minor building related services and repairs. These may include Locksmithing, door and hardware adjustments, touch-up and repairs to walls, ceilings and carpet and other minor services and fixes. In such cases, the \$500 repair threshold shall not apply.

EQUIPMENT AND SYSTEM INVENTORY

A. The Contractor shall have the opportunity to survey and examine all equipment covered by this Contract prior to preparing their proposal for the purposes of determining the age, general condition, operational use and any obstacles to contend with regards to access to and service of each piece of equipment.

B. Upon Contract award, the Contractor shall conduct a complete and systematic inventory of all GFP to reconcile the Equipment and Systems Inventory provided in the attachment. This inventory shall be conducted jointly by the Contractor's Project Manager and the COR or his designee. The inventory shall commence within fifteen (15) days after the Post Award Orientation and shall continue until completed but not to exceed fifteen (15) days.

C. The Contractor shall document the working order and condition of all equipment and systems; items missing, or other deficiencies noted and submit a Deficiency Inspection List to the COR. Failure to provide deficiency inspection documentation and the Description/Cost Estimate of Repairs for items listed on the inventory shall be deemed by the Government the contractor's acceptance of all the inventory items in an acceptable working order and an accurate list of GFP, equipment and systems.

D. The Contractor and the COR shall reconcile the inventory and certify their agreement as to the working order of the equipment. The Contractor shall provide a reconciled Inventory List to the COR. The Contractor shall reconcile the Inventory List with the COR on a quarterly basis and submit an updated Equipment and Systems Inventory to the COR. Dollar figure adjustments to the value of the Contract shall be addressed on a quarterly basis and be based on the net addition or deletion of equipment since the last reconciled report.

E. The contractor shall use the equipment coding system to identify and inventory all equipment and systems.

F. For the purposes of common reference to the GSA-PBS.5850, PM guide card numbers have been referenced to define the preventive maintenance activities required as a minimum to be performed on each piece of equipment during each preventive maintenance cycle. However, due to the critical nature of the equipment in relation to the D.E.A. mission, many of the PM cycles have been increased as much as 12X the nominal annual requirement. Thus, for the purposes of this Contract all PM activities shall be performed at the frequencies noted in the attached inventory of equipment. The GSA guide card is only used as a reference for *what* PM activities shall be performed not the required frequency of performance which is defined in the attached Equipment Inventory.

Attached Equipment Inventory

